

Disposition

This Motion is moot and will be dismissed.

Court to vacate this matter from calendar.

8. 9:00 AM CASE NUMBER: MSL19-02010

CASE NAME: CAPITAL ONE VS OECHSLI

***HEARING ON MOTION IN RE: TO SET ASIDE CCP 664.6 DISMISSAL AND ENTER JUDGMENT**

FILED BY: CAPITAL ONE BANK (USA), N.A.

***TENTATIVE RULING**

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant's counsel, the same address included in the parties' signed agreement, under Section 664.4, filed 1/3/24. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$3,360.33, plus costs of \$295, less any credits for payments received.

The Defendant made payments of \$478.

A dismissal was entered on 11/13/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,177.33.

Plaintiff to file order on Motion, as well as submit Judgment.

9. 9:00 AM CASE NUMBER: N26-0035
CASE NAME: PETITION OF: KRYSTLE SALAZAR
HEARING IN RE:
FILED BY:
TENTATIVE RULING:

Background

Petitioner has petitioned the court for declaratory relief under Section 1060 of the Code of Civil Procedure.

Petitioner alleges that she purchased a vehicle from a vendor in Washington State, but that the DMV in California requires a declaration from the court that Petitioner is in fact the owner.

The vendor, CoPart, is not listed as a Defendant. The DMV is listed as a defendant.

Analysis

Section 1060 of the CCP requires that there be an active controversy between the two parties involved in the suit. But there is no controversy with the DMV; rather, the controversy, if any exists, is with the vendor, CoPart.

Further, the evidence Petitioner provides, bills of sale, show that David Salazar Gonzalez, is the purchaser, and not the Petitioner. It doesn't appear that Petitioner has standing to sue.

Disposition

This Petition will be continued to 6/9/26, and the court will grant Petitioner leave to amend the Petition and identify the correct Petitioner and Defendant.

Petitioner must also serve Defendant with notice of this suit.

Petitioner to file the Order.